

Discussion

Defendants assert Plaintiff Rountree's disclosure of additional alleged injuries and medical providers immediately before his noticed deposition on January 26, 2026, as well as his non-appearance at a scheduled neurological medical examination on February 20, 2026, requires a continuance, because there is insufficient time to conduct required discovery prior to the current discovery cutoff of March 22, 2026. The Court agrees. The Court finds that: there is good cause to reopen discovery under Code of Civil Procedure section 2024.050(b); and the Rule 3.1332 factors support the requested trial continuance (namely: (c)(6) and (b)(1), (2), (3), (4), (5) and (10)). Trial is continued to November 3, 2026, at 9:00 a.m., mandatory settlement conference is continued to October 12, 2026, at 10:00 a.m., pretrial conference is continued to September 18, 2026, at 11:00 a.m. All discovery and related dates will be based on the new trial date.

5. CU0001845 Mark Gold, et al. vs. Robert A. Tonnies, et al.

Defendants' counsel's unopposed motion to be relieved as counsel is granted. Counsel is ordered to prepare and submit a revised order (MC-053) that reflects the continued case-management conference date of April 6, 2026. The order relieving counsel will be deemed effective only when Counsel files a proof of service with the Court of a copy of the signed order on the client. *See* California Rules of Court, Rule 3.1362(e). Counsel shall submit the revised order for the Court's signature within two (2) court days of the Court's order becoming final. No appearances are required.

6. CU0002095 Julie Childs v. Michael Brewer

Respondent's November 12, 2025, request for attorney fees will be heard by Judge S. Thomsen on April 13, 2026, at 09:00, in Department 4.

7. CU0002489 Matthew William Vickers vs. Ethan Oliver Ralph

Defendant Ralph's special motion to strike under Code of Civil Procedure section 425.16 (Anti-SLAPP Motion) is granted in part as described herein. His request for fees and costs is denied.

Oversized Brief

Subject to exceptions which do not apply here, under California Rules of Court, rule 3.1113(d), "no opening ... memorandum may exceed 15 pages." Cal. Rules of Court, rule 3.1113(d). The memorandum submitted in support of the present motion is 24 pages. The Court's records reflect that plaintiff did not file an appropriate application with the Court requesting permission to file a longer memorandum. *See* Cal. Rules of Court, rule 3.1113(e). That stated, the Court, in the exercise of its discretion, will consider the moving papers in their entirety. Defendant is admonished to comply with the California Code of Civil Procedure and the California Rules of Court.

Request for Judicial Notice

At bar, Defendant seeks judicial notice of a complaint filed in CU0001860, Ralph Decl. ¶ 48 Exhibit 10, but fails to make such request in a separate document as required. *See* Cal. Rules of